



THE POLICE COMMISSIONER
CITY OF NEW YORK

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2021-23921 regarding Sergeant Sindy Sanchez

Date: May 5, 2023

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB"), and involved a single allegation against Sergeant Sindy Sanchez of wrongfully using pepper spray against individuals during a protest in May of 2020. CCRB has determined that a deviation downward from the Disciplinary System Penalty Guidelines is warranted.

I adopt the reasoning propounded by CCRB and concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, though outside of the Disciplinary System Penalty Guidelines, a penalty consisting of a Schedule "A" Command Discipline, with the forfeiture of five (5) vacation days, as recommended by CCRB, will be imposed in this matter.


Keechant L. Sewell
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

November 14, 2022

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

VIA EMAIL

Re: CCRB v. SGT Sindy Sanchez (Tax Reg #939761, CCRB #202003715)

Commissioner Sewell:

I write to you regarding the plea in the above referenced case.

SGT Sanchez is the subject of one substantiated allegation, that she improperly used pepper spray against civilians without police necessity. According to the Department's discipline matrix, the mitigated penalty for this specification should be forfeiture of ten (10) vacation days. The CCRB determined that a penalty of forfeiture of five (5) vacation days is appropriate in this case.

The CCRB determined that the mitigated penalty was too harsh for this misconduct and deviated downward because of SGT Sanchez's regular participation in a NYPD program, led by Chief McCormack, that brings toys to pediatric cancer patients at Montefiore Hospital and SGT Sanchez's work to rescue more than one hundred (100) dogs during her career with the NYPD. SGT Sanchez would come across the abandoned and abused dogs during her time on duty, take them home, nurse them to health on her time and with own funds, and find the dogs suitable homes.

Respectfully submitted,

Jonathan Darche

Jonathan Darche
Executive Director
Civilian Complaint Review Board

Cc: Stuart London, Esq.
Steve Worth, Esq.